

EMPLOYMENT RELATIONS BOARD

OF THE

STATE OF OREGON

Case No. RCM-75-93

(PETITION FOR CERTIFICATION AFTER SCHOOL DISTRICT MERGER)

MILTON-FREEWATER EDUCATION	)	
ASSOCIATION/OEA-OACE/NEA,	)	
	)	
Petitioner,	)	CERTIFICATION OF
	)	REPRESENTATIVE OF SCHOOL
v.	)	DISTRICT EMPLOYEES
	)	AFTER MERGER
MILTON-FREEWATER UNIFIED	)	
SCHOOL DISTRICT #7,	)	
	)	
Respondent.	)	
	)	

On November 26, 1993, Milton-Freewater Education Association/OEA-OACE/NEA (Association) filed a petition under OAR 115-25-090(2) for certification as the exclusive representative of the following bargaining unit:

All employees of the Milton-Freewater Unified School District #7 who are required, as a condition of employment, to possess an academic certificate, license, degree, or the equivalent, issued by the State of Oregon, an institution of higher education, or a professional society, excluding all supervisory, confidential, and substitute employees.

The Association stated that the following school districts were merging, effective May 31, 1994:

Milton-Freewater Elementary School District 31
McLaughlin Union High School District 3
Ferndale School District 10

As its showing of interest, the Association submitted excerpts from collective bargaining agreements entered into by the Association's affiliates and each of the above districts. The Association stated that there are 109 persons in the proposed bargaining unit who are covered by those contracts. The Elections

Coordinator verified that the showing of interest submitted covered more than 50 percent of employees in the proposed unit.¹

The Umatilla County Boundary Board approved the merger (to be effective May 31, 1994) by resolution dated October 21, 1993. The petition was deemed timely.

The District filed objections to the proposed unit. The parties subsequently agreed to the terms of the unit description that we adopt in our Order.

Based on the foregoing, the Board issues the following order:

ORDER

Milton-Freewater Education Association/OEA-OACE/NEA is certified as the exclusive representative of the following bargaining unit of Milton-Freewater Unified School District #7:

All regular employees of the Milton-Freewater Unified School District No. 7 who are required, as a condition of employment, to possess an academic certificate, license, degree, or the equivalent, issued by the State of Oregon, an institution of higher education, or a professional society, excluding administrative, supervisory, confidential, substitute, and casual employees and home visiting tutors.

Dated this 16th day of February 1994.


AJ Member

Patrick J. Mosey, Board Member

This Order may be appealed pursuant to ORS 183.482.

¹The showing of interest included excerpts from a contract between Milton-Freewater School District #31 (District) and Milton-Freewater Education Association, which did not refer to that labor organization's affiliation with OEA-OACE/NEA. Petitioner subsequently submitted documentation that reflected that affiliation.